

Terms and Conditions and the purposes for sanctioning Grants to the Village Panchayats

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State of Goa - Act

Terms and Conditions and the purposes for sanctioning Grants to the Village Panchayats

GOA

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Terms and Conditions and the purposes for sanctioning Grants to the Village Panchayats

Rule

TERMS-AND-CONDITIONS-AND-THE-PURPOSES-FOR-SANCTIONING-GRANTS-TO-THE-VILLAGE-PANCHAYATS of 1997

Published on 4 November 1997

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Terms and Conditions and the purposes for sanctioning Grants to the Village Panchayats

Published vide Notification No. 25/7/81-DEV/VOL. 5/1887, dated 4th November, 1997

25.

/7/81-DEV/VOL. V/1887. - In pursuance of sub-section (1) of section 160 of the Goa Panchayat Raj Act, 1994 (Act No. 14 of 1994), the Government hereby prescribes the following terms and conditions and the purposes for sanctioning Grants to the Village Panchayats.

1.

Purposes for which Grants may be sanctioned.

- (a) Construction and maintenance of village roads, drains and culverts;
- (b) construction, repairs and maintenance of drinking water wells, tanks, ponds and public springs;
- (c) prevention and control of water pollution;
- (d) maintenance of rural water supply schemes;
- (e) providing for and maintenance of lighting of public streets and other public places;
- (f) maintenance of general sanitation;
- (g) cleaning of public roads, drains, tanks, wells and other public places;
- (h) construction and maintenance and regulations of burning and burial grounds;
- (i) construction and maintenance of public latrines;
- (j) construction and maintenance of slaughter houses;
- (k) construction and maintenance of public/children parks;
- (l) construction and maintenance of cattle ponds, cattle sheds and cart stands;
- (m) establishment and maintenance of Village libraries and reading rooms;
- (n) construction and maintenance of passenger sheds, bus stands and taxi stands;
- (o) providing infrastructures for sports activities like Badminton, Volley Ball, Kabbadi, Kho-Kho, etc.;
- (p) disposal of unclaimed corpses and carcasses;
- (q) land acquisition for all above projects.

2.

Limits and extent of grants.

- The grants shall be sanctioned to such items/works whose estimated cost does not exceed Rs. 5.00 lakhs and the amount shall be sanctioned as follows:-

- (a) Panchayats whose annual income is upto Rs. 1,00,000/-
100% of the project cost
- (b) Panchayats whose annual income is above Rs. 1,00,000/- but not exceeding Rs. 2,00,000/-
75% of the project cost
- (c) Panchayats whose annual income is above Rs. 2,00,000/- but not exceeding Rs. 5,00,000/-
50% of the project cost
- (d)

The Panchayats whose annual income is above Rs. 5,00,000/- will not be entitled to the G. I. A. under this scheme.

Explanation. - "Annual Income" means the income of the panchayat from all sources inclusive of Taxes, fees, Octroi, rents, fires, sale proceeds, Bank interest, matching grants, etc., but does not include loans security deposits, guarantees, and grants sanctioned for developmental works.

3.

Panchayats desiring to avail benefits of grants shall submit an application to the Director of Panchayats through the Block Development Officer, in the form appended to this Notification, alongwith the following documents:

(a)

resolution of the Panchayats;

(b)

certificate to the effect that the project has been reflected in the budget and the sufficient funds are available to meet balance amount;

(c)

projects report with full particulars;

(d)

estimated cost alongwith the Technical sanction from the competent authority;

(e)

ownership documents of the property site of the project;

(f)

certificate to the effect that the Grants previously sanctioned has been fully utilised and the necessary utilisation certificate has been furnished.

4.

The sanction of grants shall be subject to the availability of funds.

5.

The proposal for grants alongwith all the required documents shall be submitted to respective Block Development Officer on or before 30th June, every year, provided that the Director of Panchayats may authorise the Block Development Officer to receive the proposal after the prescribed date.

6.

The entire grants shall be utilised within a period of one year from the date of drawal. However, the Director may extend the time limit to such period as he may deem necessary at the request of the Panchayat, in deserving cases.

7.

In case the execution period of the works is more than one year, then the grants will be released in instalments after having satisfied that the grants sanctioned earlier have been fully utilised.

8.

The Block Development Officer shall draw and disburse the grants on receipt of sanction order. The grants shall be drawn in form TR 42, duly signed by the Sarpanch and countersigned by the Block Development Officer.

9.

Any portion of the grant which is not utilised or is not ultimately for the purpose for which it is sanctioned shall be refunded in case to the Government Treasury.

10.

The Panchayat shall submit to the Block Development Officer "Utilization Certificate" in Form GFR 19-A as required under GFR 15(1) within one month from the date of its utilisation, but not later than 18 months from the date of drawal.

11.

The Panchayat shall maintain a Register of Grants in Form G. F. R. 19. The Block Development Officer shall also maintain necessary registers and ensure compliance of all the conditions by the Grantees institution.

12.

No grants shall be sanctioned unless the previous grants are fully utilised by the Panchayats and utilisation certificates are furnished. Any part of grants remaining unutilised/unspent shall be refunded immediately.

13.

The grants shall be utilised for the purpose for which it is sanctioned, and shall not be utilised for any other purpose

without the written prior approval from the sanctioning authority.

14.

The accounts of the Panchayats shall be audited by such officer as may be authorised by the Director of Accounts every year as envisaged in section 187 of the Goa Panchayat Raj Act, 1994. The accounts shall also be open to a test check by the Comptroller and Auditor General of India at his discretion.

15.

The grants/grantee institution shall also be subject to all other conditions as laid down under the General Financial Rules, as amended from time to time.

16.

The Director of Panchayats shall be Sanctioning Authority.

Application form for the sanction of Grants to Panchayats

1. Name of the Panchayat:

2. Title and Description of the Scheme:

3. Total Estimated Cost:

4. The annual income:

5. Amount provided in the Budget under Items No.:

6. Location with description of the property Ward No. etc.:

7. No. and date of resolution approving the Scheme:

8. Enclosed following documents:

.....

Sarpanch

Place :

Date :

Revised Pattern of Assistance of Giving Matching Grants to The Village Panchayats in Goa

Revised rates of matching grants for Panchayats

Rate of matching grants

1.

Village Panchayats whose annual income is upto Rs. 20,000/-

200%

2.

Village Panchayats with annual income above Rs. 20,000/- to Rs. 50,000/- except that the panchayats with an income above Rs. 20,000/- to Rs. 23,999/- will receive additional matching grants equal to the difference Rs. 40,000/- and the amount arrived @ 150%

150%

3.

The Village Panchayat from income over Rs. 50,000/- except that panchayats with an income above Rs. 50,000/- to Rs. 62,500/- will receive the additional matching grants equal to the difference between Rs. 75,000/- and the amount arrived @ 100%

100%

Note. - In case any panchayat registers a fall in the income during the year in respect of which matching grants is being claimed as compared to the income of the previous year, then the Government reserves the right to release matching grants to such panchayats @ 100% only. The above provision is necessary to guard against the panchayats who may try to default by making leniency in levy of taxes and fees.

Notifications

25.

/6/DP/ZP/2000. - In pursuance of sub-section (1) of section 160 of the Goa Panchayati Raj Act, 1994 (Act No. 14 of 1994), the Government hereby prescribes the following terms and conditions and the purpose for sanctioning grants-in-aid to the Zilla Panchayats.

1. Purposes for which grants may be sanctioned:-

(a)
towards salary/maintenance grants of administrative nature on recurring and non-recurring items.

(b)
towards functions and responsibilities included in Schedule II of the Goa Panchayati Raj Act, 1994.

(c)
towards Land Acquisition for which Administrative Approval is issued by the Government and sanctioning authority.

2. The grants sanctioned to the Zilla Panchayats shall be utilized for the scheme/project/work for which the amount is sanctioned.

3. The maximum ceiling of the estimated cost of each item/work/project shall not exceed Rs. 5,00,000/-.

4. The grants shall be released to the Zilla Panchayats in instalments, subject to availability of funds.

5. The Zilla Panchayats shall submit an application to the Director of Panchayats through the Chief Executive Officer alongwith a copy of the resolution seeking release of grants.

6. The Assistant Accounts Officer, Directorate of Panchayats, shall draw and disburse the grants on receipt of sanction order. The grants shall be drawn in Form TR 42, duly signed by the Chief Executive Officer or such officer authorised on his behalf.

7. The grants shall be deposited in the Government Treasury.

8. The grants released shall be utilized within a period of one year from the date of drawal. However the Director of Panchayats may extend the time limit to such period as he may deem necessary at the request of the Zilla Panchayat, in deserving cases.

9. The grants shall be utilized for the scheme under which it is sanctioned, and shall not be utilised for any other purpose.

10. Grants sanctioned for specific works/project under a scheme should be utilized exclusively for the works and no expenditure on account of salaries, wages and other items of contingent nature should be debited to any works/schemes/project.

11. The utilisation of grants by the Zilla Panchayats shall be subject to all other conditions as laid down in the General Financial Rules, Accounts Code, C. P. W. D. Manual, etc., as amended from time to time and such other rules/instructions issued by the Government in this regard.

12. The Zilla Panchayat shall submit to the Director of Panchayats an "Utilisation Certificate" in Form GFR - 19A as required under G. F. R. 151(1) within one month from the date of its utilization, but not later than 18 months from the date of drawal.

13. No grants shall be sanctioned to the Zilla Panchayats unless the previous grants are fully utilised and the utilisation certificate is furnished.

14. The Utilisation Certificate shall be signed by the Chief Executive Officer and the Chief Accounts Officer.

15. All equipments/stores/furniture and other assets purchased and all developmental and other works undertaken with the aid of the grant will vest in the Government.

16. The Zilla Panchayats shall maintain a Register in Form G. F. R. 19 of permanent and semi-permanent assets acquired/constructed wholly or partly out of Government grants.

17.

The concerned Head of Department or his authorised representative may undertake inspection of the works undertaken out of grants sanctioned from their outlay and submit a report if found necessary to the grants sanctioning authority, in terms of section 174 of the Goa Panchayati Raj Act, 1994.

18.

The audited Statement of Accounts showing the expenditure incurred by the Zilla Panchayat from the grants sanctioned should be furnished to the Director of Panchayats as soon as possible after the close of the financial year, together with a certificate from the Chief Accounts Officer to the effect that the grants were utilised as per the Rules in force and for the purpose for which they were sanctioned.

19.

The accounts of the Zilla Panchayats shall be audited by such officer as may be authorised by the Comptroller and Auditor General of India, as envisaged in Section 194 of the Goa Panchayat Raj Act, 1994. The Director of Accounts or such other officer authorised by him may also carry out inspections of the accounts of the Zilla Panchayats at the request of the Director of Panchayats.

20.

The Director of Panchayats shall be the sanctioning authority, subject to the limitations laid down in the Delegation of Financial Powers Rules, 1997.

21.

These issues with the concurrence of Finance Department vide their U. O. No. FS/5931/2000 dated 9-8-2000.

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